

24VECV04334 24VECV04334

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-06-30

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAV%2C107%2C06%2F30%2F2026

Source SHA-256: 9914c1685fa0194103f4a89051f41ecf1cbaaed1f2819231485cf0a4f8b5a662

Case Number: 24VECV04334 Hearing Date: June 30, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Davis

Nikkoy Martin, et al.,

Plaintiffs,

v.

Mink

Michael Stuart

Defendant.

Case Number Department

24VECV04334 107

COURT'S

[TENTATIVE] ORDER RE:

Motion

to be Relieved as Counsel

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:
DENIED.

The proof of service is addressed
to "Plaintiff, Davis Nikkoy Martin; Plaintiff Cassandra Michael
Martingotcha and as Guardian Ad Litem of Davis Jeremiah Martin; Davis
Elijah Martin; and Alexis Martin." (Notice of Motion and Motion pdf p. 3.)
Plaintiff's name is Cassandra Michelle Martin, not Cassandra Michael
Martin.

Counsel served Plaintiffs by mail
with the notice of motion and motion, declaration, and proposed order.
(Notice of Motion and Motion pdf pp. 3-4.) Counsel did not give Plaintiffs
sufficient notice for service by mail. (Code Civ. Proc., § 1005, subd. (b).)

Counsel seeks to withdraw ten
weeks before trial. The court is concerned this may cause undue delay or
injustice.

This matter involves minors who
are represented by guardians ad litem. Attorneys must obtain court
approval before withdrawing as attorneys of record for minors appearing
through guardians ad litem. (Torres v. Friedman (1985) 169
Cal.App.3d 880, 888.) "The withdrawal of counsel as distinguished from the
substitution of qualified counsel leaves the guardian ad litem in the
untenable position of perhaps committing a misdemeanor: practicing law
without a license. (Bus. & Prof. Code, § 6126.) Thus, a trial judge
should not ordinarily permit an attorney to withdraw unless other
qualified counsel has been obtained. Instances will arise, however, where
an order permitting counsel to withdraw before replacement counsel has
been obtained may be a proper exercise of the judge's discretion due to
extenuating circumstances." (Id.) The court is not persuaded such
circumstances exist here.

Dated: June 30, 2026 _____ Hon. Eric Harmon

Judge of the Superior
Court